

25PSCV01771 25PSCV01771

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-29

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Case Number: 25PSCV01771 Hearing Date: July 29, 2026 Dept: O

Tentative Ruling

Plaintiff's

Application for Entry of Default Judgment is CONTINUED to FRIDAY, September 18 at 9 AM for supplemental briefing; the supplemental brief must be filed at least 16 court days before the hearing date. In the alternative, should Plaintiff not seek the additional \$50,000, the court will enter default judgment.

Background

This

case arises from an unpaid loan of \$50,000.

On

May 13, 2025, Plaintiff Albert Luna filed suit against Defendants CLAUDIA CASTILLO, an individual; HOOKED LOUNGE, LLC, aka HOOKAH LOUNGE, LLC ("Hooked") for:

1. FRAUD (INTENTIONAL MISREPRESENTATION)
2. BREACH OF CONTRACT
3. UNJUST ENRICHMENT
4. CONVERSION (CIVIL THEFT)
5. VIOLATION OF BUSINESS AND PROFESSIONS CODE

SECTION § 17200 (UNFAIR BUSINESS PRACTICE)

On

July 9, 2025, default was entered as to Hooked.

On

October 28, 2025, default was entered as to Castillo.

On

May 8, 2026, the instant application was filed.

Discussion

Plaintiff

seeks entry of default judgment against both Defendants in the total amount of \$109,236.31 which is comprised of \$50,000 in damages, \$7,083.33 in interest, costs in the amount of \$2,152.98 and \$50,000 for "fraud and civil theft." The only defect the court notes is that Plaintiff has not provided the legal briefing that would warrant \$50,000 for "fraud and civil theft." While the court takes as true the allegation that Defendants took and retained \$50,000 without the intention of repaying Plaintiff, Plaintiff must prove-up his damages i.e., for the additional \$50,000.

With

that, rather than deny the application, the court seeks supplemental briefing on the foregoing issue which must be submitted at least 16 court days before the hearing date.

Alternatively,

should Plaintiff forego the additional \$50,000 for "fraud and civil theft," the court will enter judgment (upon the filing of a revised proposed order).

Conclusion

Based

on the foregoing, the hearing is continued/maybe granted.